

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANTHONY DESTEFANO,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD DETECTIVE
MICHAEL GERSCH, Shield No. 4593, NYPD
DETECTIVE ANTHONY VELEZ, Shield NO. 5584,
NYPD OFFICERS JOHN/JANE DOES NUMBERS 1-10,
and NYC CORRECTION OFFICERS JOHN/JANE DOES
NUMBERS 1-10,Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 2nd, 2021

Yours, etc.

Caitlin Robin

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorneys for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE MICHAEL GERSCH, SHIELD NO. 4593, 49th Precinct; 2121
Eastchester Road, Bronx, NY 10461
NYPD DETECTIVE ANTHONY VELEZ, Shield NO. 5584, 49th Precinct; 2121
Eastchester Road, Bronx, NY 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

ANTHONY DESTEFANO,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
MICHAEL GERSCH, Shield No. 4593, NYPD
DETECTIVE ANTHONY VELEZ, Shield NO. 5584,
NYPD OFFICERS JOHN/JANE DOES NUMBERS 1-10,
and NYC CORRECTION OFFICERS JOHN/JANE DOES
NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff ANTHONY DESTEFANO, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 21, 2020, at approximately 10:00 a.m., plaintiff ANTHONY DESTEFANO, having been lawfully in the vicinity of Lafayette Avenue and Throgs Neck Expressway in Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff was imprisoned at Rikers Island Correctional Facility for approximately one (1) month by the defendant officers where he was injured and denied medical attention by defendant correction officers, causing him to suffer significant loss of earnings as well as physical, mental, and emotional injury. Plaintiff was denied the right to due process and a fair trial for false charges of Murder and Manslaughter, which were dismissed outright and sealed on or around March 11, 2021. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ANTHONY DESTEFANO is a resident of the state of New York.
3. NYPD DETECTIVE MICHAEL GERSCH, SHIELD NO. 4593, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD DETECTIVE MICHAEL GERSCH, SHIELD NO. 4593, was at all times relevant herein, assigned to the 49th Precinct.
5. NYPD DETECTIVE MICHAEL GERSCH, SHIELD NO. 4593, is being sued in his individual and official capacities.
6. NYPD DETECTIVE ANTHONY VELEZ, SHIELD NO. 5584, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD DETECTIVE ANTHONY VELEZ, SHIELD NO. 5584, was at all times relevant herein, assigned to the 49th Precinct.
8. NYPD DETECTIVE ANTHONY VELEZ, SHIELD NO. 5584, is being sued in his individual and official capacities.
9. NYPD OFFICERS JOHN/JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. NYPD OFFICERS JOHN/JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 49th Precinct.
11. NYPD OFFICERS JOHN/JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.
12. NYC CORRECTION OFFICERS JOHN/JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Department of correction.
13. NYC CORRECTION OFFICERS JOHN/JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to Rikers Island Correctional Facility.

14. NYC CORRECTION OFFICERS JOHN/JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department and New York City Department of Correction, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department and Department of Correction at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police and Correction Departments and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police and Correction Departments.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and correction department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police and correction force and the employment of police and correction officers as said risks attach to the public consumers of the services provided by the New York City Police Department and Department of Correction.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

18. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on June 7, 2021.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On July 21, 2020, at approximately 10:00 A.M., Plaintiff was lawfully present in the vicinity of Lafayette Avenue and Throgs Neck Expressway in Bronx, New York,

when the defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

23. Plaintiff was driving to a doctor's appointment on the morning of July 21, 2020.

24. Just as the plaintiff approached the I-95 entrance ramp near Lafayette Avenue and Throgs Neck Expressway, he was pulled over by defendant NYPD officers.

25. Plaintiff complied with the instructions of the defendant officers, but at this point the officers began to arrest the plaintiff.

26. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

27. Nevertheless, Plaintiff was unlawfully arrested, handcuffed, and subjected to an unlawful pat-down search by defendant officers without legal justification or probable cause.

28. At no point did Plaintiff resist arrest or become combative with defendant officers.

29. The Defendant Officers then placed the plaintiff in the back of a police vehicle and transported him against his will to the NYPD 49th Precinct where he was unlawfully fingerprinted, photographed, searched, and placed in a holding cell.

30. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

31. One defendant NYPD detective drove the plaintiff's car back to the precinct after his arrest and received a ticket for speeding in the process.

32. The defendant police officers then provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

33. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that the plaintiff was guilty of second degree Murder and first degree Manslaughter, as related to events that had occurred over two months prior on May 2, 2020.

34. On July 22, 2021, Plaintiff was arraigned in criminal court and remanded by a judge to Rikers Island Correctional Facility.

35. Based on the Defendants false allegations, Plaintiff was sent to Rikers Island with no bail, to remain indefinitely, during the Covid-19 Pandemic.

36. Plaintiff was forced to hire a private criminal defense attorney for approximately \$15,000 to fight these false charges.

37. While in unlawful custody at Rikers, some inmates set fires inside the prison, causing the plaintiff to suffer from smoke inhalation; the plaintiff begged defendant correction officers to be moved away from the smoke but was left for almost four days without medical treatment.

38. By the time the plaintiff was finally allowed to see a nurse at Rikers he was coughing up a black substance, but the nurse seemed unbothered and sent him away without treatment.

39. At some point after July 22, 2021, a Judge changed the bail status from Remand to \$300,000.00 monetary bail, based on the Defendant Police Officers flimsy proof for the allegations.

40. On August 20, 2020, after approximately 30 days in unlawful custody, the plaintiff made bail and was released from Rikers.

41. After his release from custody, the plaintiff had to pay the fine for the speeding ticket incurred by the defendant officer who illegally drove his car to the 49th Precinct.

42. As a result of his incarceration and the subsequent pending charges against him, the defendant was suspended from work for approximately nine months and his professional and personal relationships suffered greatly.

43. There were multiple news reports that mentioned the Plaintiff as a murderer, based on the Defendants' false allegations.

44. Thereafter, on or around March 11, 2021, all charges which were falsely made against the plaintiff were dismissed and sealed.

45. The Honorable Judge Steven Hornstein in Bronx Supreme Court dismissed the Grand Jury indictment against Plaintiff after reviewing the Grand Jury Minutes, and found that, "In the light most favorable to the People, the evidence presented was not legally sufficient to establish a crime."

46. Some of the police and correction officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, neglecting, humiliating, and denying Plaintiff the right to due process and a fair trial.

47. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

48. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

50. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

51. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to financial, emotional, physical, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

57. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

59. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

60. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

63. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

65. Defendants lacked probable cause to search Plaintiff.

66. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

70. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein

71. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

72. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

73. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

74. In withholding/creating false evidence against Plaintiff ANTHONY DESTEFANO, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

75. As a result of the foregoing, Plaintiff ANTHONY DESTEFANO sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

79. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The use of excessive force by defendants by, amongst other things, handcuffing him, imprisoning him for one month, and denying him proper ventilation or care, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

81. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, and the New York City Department of Correction, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

82. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

84. Defendants commenced and continued a criminal proceeding against Plaintiff.

85. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for the charges for which he was prosecuted.

86. The prosecution and criminal proceedings caused Plaintiff to be unlawfully imprisoned for one month, and prosecuted for 8 months, and thereafter terminated in the plaintiff's favor on the aforementioned dates.

87. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to financial, emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

90. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 89 with the same force and effect as if more fully set forth at length herein.

91. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, ANTHONY DESTEFANO.

92. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

93. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, and the New York City Department of Correction, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

97. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police and correction duties on the aforementioned dates at the aforementioned locations.

99. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TENTH CAUSE OF ACTION

Failure to Intervene

100. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 99 with the same force and effect as if more fully set forth at length herein.

101. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described herein.

103. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to unlawful search and other physical constraints.

104. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, and the New York City Department of Correction, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

108. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. Despite being aware that Plaintiff was suffering and required treatment from medical professionals, defendants delayed Plaintiff's medical treatment and refused to administer and/or properly procure immediate and adequate medical attention.

110. This delay in medical treatment for Plaintiff's injuries resulted in pain and injury that could have been prevented had Plaintiff received treatment in a timely manner.

111. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Department of Correction, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

JURY DEMAND

115. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff ANTHONY DESTEFANO demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 2nd, 2021

By: Caitlein Robin
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorneys for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD OFFICER MICHAEL GERSCH, SHIELD NO. 4593, 49th Precinct; 2121
Eastchester Road, Bronx, NY 10461
NYPD DETECTIVE ANTHONY VELEZ, Shield NO. 5584, 49th Precinct; 2121
Eastchester Road, Bronx, NY 10461

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 2nd, 2021

Caitlin Robin

CAITLIN ROBIN